

amend for failure to state facts sufficient to constitute a cause of action.

Intentional Infliction of Emotional Distress: To state a claim, Plaintiff must plead extreme and outrageous conduct by the defendant with the intention of causing, or reckless disregard of the probability of causing, emotional distress; the plaintiff's suffering of severe or extreme emotional distress; and actual and proximate causation of the emotional distress by the defendant's outrageous conduct. *Christensen v. Superior Court* (1991) 54 Cal. 3d 868. Again, the Complaint only makes the bare allegation that "Defendants' conduct was extreme and outrageous." No facts regarding any particular conduct are alleged. This is insufficient to put Defendants on notice of the nature, source and extent of the cause of action. The Demurrer is **SUSTAINED** with leave to amend for failure to state facts sufficient to constitute a cause of action.

The Demurrer is **SUSTAINED** with leave to amend as detailed above. Plaintiff is granted 15 days leave to amend from notice of entry of order. The proposed order will be modified.

## **LAURENCE VS. HOLT OF CALIFORNIA**

**CASE NUMBER: 25CV-0207217**

**Tentative Ruling on Motion to Compel Further Responses to Discovery**: Plaintiff moves to compel Defendant to provide further responses and production of documents to Requests for Production of Documents, Set Two Nos. 19, 23, 25-29, and 32. Defendant opposes the motion.

On receipt of a response to a demand for inspection or to interrogatories, a propounding party may move for an order compelling further responses if the responses are inadequate. CCP §§ 2031.310(a), 2030.300(a). A motion to compel further responses for production must show "good cause" for the request. CCP § 2031.310(b)(1). The motion must be accompanied by a meet and confer declaration under Section 2016.040. CCP §§ 2030.300(b) and 2031.310(b). The Declaration of May T. To establishes compliance with the meet and confer requirements.

RPD 19 – Documents relating to communications between Holt and Aggrieved Employees ("AEs") relating to this action. The Motion does not address this RPD. No evidence or argument establishing good cause is presented as required by CCP 2031.310(b)(1). The Separate Statement states only that Plaintiff believes the documents are reasonably calculated to lead to the discovery of admissible evidence, but does not explain why and does not "set forth specific facts showing good cause justifying the discovery sought by the demand." CCP 2031.310(b)(1). Therefore, Plaintiff has failed to carry its burden to establish good cause for further responses. No further production is ordered.

RFD 23 – All GPS data of Holt's company vehicles driven by AEs for work purposes during the relevant time period. Defendant objects on several grounds including that the data is cumulative and not relevant, that *Belaire-West* notice is required, that the request is unduly burdensome, that the documents are not kept in the ordinary course of business, and that Defendant does not own, control, or have custody of the records.

Defendant argues that AEs must receive notice and opportunity to opt-out through the *Belaire-West* notice procedure. Defendants argue that the protective order and redaction of identifying information is insufficient, because employee IDs already produced to Plaintiff could be used to cross-reference the de-identified information.

“Whether a legally recognized privacy interest exists is a question of law, and whether the circumstances give rise to a reasonable expectation of privacy and a serious invasion thereof are mixed questions of law and fact. (Ibid.) “ ‘If the undisputed material facts show no reasonable expectation of privacy or an insubstantial impact on privacy interests, the question of invasion may be adjudicated as a matter of law.’ ” *Belaire-West Landscape, Inc. v. Superior Court* (2007) 149 Cal.App.4th 554, 558. “As a starting point, the claimant must possess a “legally protected privacy interest.” (*Hill, supra*, 7 Cal.4th at p. 35.) Next, the claimant must have a reasonable expectation of privacy under the particular circumstances, including the customs, practices, and physical settings surrounding particular activities. (*Id.* at pp. 36–37.) Third, the invasion of privacy must be serious in nature, scope, and actual or potential impact; trivial invasions do not create a cause of action. (*Id.* at p. 37.) If a claimant meets these criteria, then the court must balance the privacy interest at stake against other competing or countervailing interests. (*Pioneer, supra*, 40 Cal.4th at pp. 370–371.)” *Belaire-West Landscape, Inc. v. Superior Court* (2007) 149 Cal.App.4th 554, 558–559.

Here, the data sought includes “All GPS data of Holt of CA’s company vehicles that were driven by Aggrieved Employees for work purposes during the relevant time period.” The parties appear to agree that the GPS is on and recording at all times, and that employees drove these vehicles both during work hours and off the clock. Therefore, this dataset would include GPS data recording employee whereabouts both on and off the clock. This would include locations of home addresses and potentially other locations implicating important privacy interests such as medical appointments or other personal time activities. As such, employees have a reasonable expectation of privacy under the circumstances, and the invasion of privacy is not trivial. This is especially true because Plaintiff already has in their possession a list of employees with contact information which could be used to cross-reference any datasets using employee IDs. In this circumstance the Court finds that the use of the protective order and redactions is insufficient. Notice and the opportunity to opt-out is required.

As to the maintenance and control of this data, the evidence before the court is that third parties Verizon and Samsara collect, own and possess these data sets. Therefore, it is incumbent upon Plaintiff to subpoena the records from those third parties if necessary. No further production from Defendant is ordered.

RFD 25 through 29 – Manuals, instructions, policies or guidelines that were provided to AEs regarding the recording of time worked in the DBS and Unicorn systems, documents describing the operations of these systems, and documents reflecting training regarding these systems. Defendant has represented that it has produced all responsive documents and that no further documents are being withheld. Plaintiff’s Reply argues that PMQ Lightfoot testified that there are written policies provided to employees to operate the Unicorn and DBS system but that she does not know if these policies were provided to Plaintiff’s counsel during discovery. To the extent such written policies exist and have not been produced, they are ordered to be produced. If no further written policies on how to use DBS and Unicorn exist, Defendant is ordered to confirm this fact in a supplemental verified response within 10 days of notice of entry of order.

RFD 32 – Documents reflecting any discipline or corrective action administered to any AE during the relevant time period relating to timekeeping. The Motion does not appear to address this RPD. The Separate Statement argues there is good cause for further production because these records are relevant to whether Plaintiff stole company time, whether Plaintiff and AEs recorded all

compensable time, whether they were properly paid, and whether Defendant implemented a uniform policy regarding timekeeping and billing its customers in the DBS system.

First, whether there was a uniform policy in place is addressed in other RPDs and is not responsive to this RPD. Disciplinary or corrective action records related to AE's timekeeping would also implicate employees' personnel files and their privacy interests therein. As discussed above, the protective order and redactions would be insufficient in this case to de-identify data because of the employee list already in Plaintiff's possession. At minimum, a *Belaire-West* notice would be required, and additionally, Plaintiff would need to establish how this information could be adequately protected given the employees' privacy rights in their personnel files. No further production is ordered.

Both sides request monetary sanctions pursuant to CCP §§ 2030.290(c), 2031.300(c), and 2033.280(c). Sanctions are mandatory against the unsuccessful party, absent substantial justification or other circumstances that would make imposition of the sanctions unjust. Here, neither party has been wholly unsuccessful. Both sides have substantial justification for portions of their motion and oppositions, respectively, such that the imposition of sanctions would be unjust. No sanctions will be imposed.

Plaintiff's Motion to Compel Further Responses to Demand for Production is **GRANTED** in part as discussed above with respect to RPDs 25 and 26. No sanctions are imposed. The proposed order will be modified accordingly.

#### **IN RE: RADIE**

#### **CASE NUMBER: 26CV-0210405**

**Tentative Ruling on Petition for Change of Name:** Petitioner Amber Marie Radie seeks to change her minor daughter's name. Proper proof of service of the father is on file. All procedural requirements of CCP §§ 1275 et. seq. have been satisfied.

This matter first came on for hearing on July 6, 2026. The minor's father appeared and stated his objection to the name change. The Court instructed the father to file his objection with the Court and continued hearing to August 10, 2026. No objection was filed, however, the father filed a Witness List and five declarations from others. While the father has not filed a written objection, it is clear that the father is objecting to the Petition. The father will need to file a written objection that provides the reasons that the Petition is opposed.

CCP § 1278.5 provides "In any proceeding pursuant to this title in which a petition has been filed to change the name of a minor, and both parents, if living, do not join in consent, the court may deny the petition in whole or in part if it finds that any portion of the proposed name change is not in the best interest of the child." "The controlling consideration in determining whether a change in a child's surname should be ordered against the objection of one of the parents, is the welfare of the child [citations]." *In re Marriage of Schiffman* (1980) 28 Cal.3d 640, 645. Courts are to consider factors including the length of time that the child has used a surname, the effect of a name change on preservation of the father-child relationship, the strength of the mother-child relationship, the identification of the child as a part of a family unit, and any confusion, embarrassment or discomfort the child may experience by bearing a surname different from the rest of their household. *See id.*